

25NNCV06010 25NNCV06010

County: los-angeles

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Case Number: 25NNCV06010 Hearing Date: July 9, 2026 Dept: P

[TENTATIVE] ORDER GRANTING MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION, SET ONE IN PART AND DENYING IN PART, AND GRANTING MONETARY SANCTIONS

I. INTRODUCTION

Plaintiff Merly Mazariegos Hernandez ("Plaintiff") brings this Song-Beverly Consumer Warranty Act action against Defendant BMW of North America, LLC ("Defendant") arising from Plaintiff's purchase of a used 2021 BMW M340i.

On November 25, 2025, Defendant served Requests for Production, Set One. On March 3, 2026, Defendant filed the instant motion to compel further responses to Requests for Production, Set One, and for monetary sanctions. On June 25, 2026, Plaintiff filed an opposition. No reply has been filed.

II. LEGAL STANDARD

A motion to compel a further response to interrogatories or production of documents must be noticed within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing. (Cal. Code of Civ. Proc. §§ 2030.300(c), 2031.310(c); see also *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409; *Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 685.) Otherwise, the propounding party waives any right to compel further responses. (Id.) The 45-day time limit is mandatory and jurisdictional. (*Sexton*, supra, 58 Cal. App. 4th at 1410.)

Code of Civil Procedure section 2030.300 provides, in pertinent part, as follows:

(a) On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply:

(1) An answer to a particular interrogatory is evasive or incomplete.

(2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate.

(3) An objection to an interrogatory is without merit or too general.

(b) A motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040.

III. ANALYSIS

Defendant moves to compel Plaintiff's further responses to Requests for Production, Set One, arguing Plaintiff served unverified responses without producing responsive documents and failed to supplement those responses despite Defendant's meet-and-confer efforts. Defendant therefore seeks an order compelling verified further responses. (Motion, p.5.)

Although Defendant does not identify any specific requests at issue in its memorandum, Defendant's separately filed statement challenges only Request for Production Nos. 21, 25, and 40, as well as Plaintiff's general objections, boilerplate objections, and lack of verifications. The Court limits its analysis accordingly.

Plaintiff opposes the motion, arguing Defendant's memorandum does not identify any specific requests warranting further responses and cites no authority in support of its general objections. Plaintiff also contends Defendant failed to adequately meet and confer because defense counsel sent only a single letter and did not attempt any further communication, including by calling Plaintiff's counsel's personal cell phone.

The Court is not persuaded. Plaintiff cites no authority requiring a moving party to set forth its request-specific arguments in the memorandum of points and authorities rather than the separate statement. Here, Defendant filed a separate statement identifying the specific requests at issue and the factual and legal basis for compelling further responses, which the Court addresses below. The Court is likewise unpersuaded that Defendant failed to adequately meet and confer merely because defense counsel did not contact Plaintiff's counsel on his personal cell phone. (Opposition 2-5.)

RFP No. 21

Request No. 21 seeks documents supporting Plaintiff's claim for attorney's fees. Plaintiff opposes, arguing attorney's fees are not presently at issue and Defendant is not entitled to unfettered access to counsel's invoices, correspondence, memoranda, or litigation strategy before any fee motion has been filed. The Court agrees and declines to compel a further response.

The motion as to RFP No. 21 is DENIED.

RFP No. 25

Request No. 25 seeks documents regarding payments made for the subject vehicle, including loan payment receipts, lender correspondence, payment history, payoff information, and other lender documents. Plaintiff opposes, arguing he produced all responsive documents within his possession, custody, or control and, after a diligent search and reasonable inquiry, no additional responsive documents exist. The Court agrees. Plaintiff's response complies with Code of Civil Procedure section 2031.230 by stating that a diligent search and reasonable inquiry were conducted and that no additional responsive documents are within Plaintiff's possession, custody, or control.

Thus, the motion as to RFP No. 25 is DENIED.

RFP No. 40

Request No. 40 seeks documents regarding Plaintiff's automobile insurance for the subject vehicle. Plaintiff opposes, arguing that after a diligent search and reasonable inquiry, no responsive documents are within Plaintiff's possession, custody, or control. The Court is not persuaded. While Plaintiff states that no responsive documents are currently in his possession, the response does not comply with Code of Civil Procedure section 2031.230, which requires a responding party claiming an inability to comply to state whether the inability is because the documents never existed, have been destroyed, lost, misplaced, or stolen, or are no longer within the responding party's possession, custody, or control. The response must also identify any person or entity known or believed to have possession, custody, or control of the responsive documents. Plaintiff's response fails to satisfy these requirements.

Thus, the motion as to RFP No. 40 is GRANTED.

Sanctions

Defendant requests \$2,685.00 in monetary sanctions, representing seven hours of attorney time at \$375.00 per hour, including anticipated time to review Plaintiff's opposition and prepare a reply, plus the \$60.00 filing fee. (Sheehan Decl., ¶¶ 8-9.) Under C.C.P. §2031.310(h), "[t]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (C.C.P. §2031.310(h).)

Here, because no reply was filed, the Court does not include Defendant's anticipated time for reviewing the opposition and preparing a reply. Moreover, Defendant prevailed only in part. The Court denied the motion as to Request for Production Nos. 21 and 25 and granted the motion only as to Request No. 40. Under these circumstances, the Court finds the requested sanctions excessive. The Court instead awards Defendant reduced monetary sanctions in the amount of \$435.00, representing one hour of attorney time at counsel's hourly rate of \$375.00, plus the \$60.00 filing fee. (Sheehan Decl., ¶¶ 8-9.) The sanctions shall be paid by Plaintiff and Plaintiff's counsel, jointly and severally, within 20 days' notice of this order.

IV. ORDER

The Court GRANTS Defendant's motion to compel further responses as to Request for Production No. 40 and DENIES the motion as to Request for Production Nos. 21 and 25. Plaintiff shall serve a verified further response to Request for Production No. 40, compliant with Code of Civil Procedure section 2031.230, within 20 days' notice of this order.

The Court awards Defendant monetary sanctions in the amount of \$435.00, payable by Plaintiff and Plaintiff's counsel, jointly and severally, within 20 days' notice of this order.

Defendant is to give notice.

Dated: July 9, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT